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INDEPENDENT CONTRACTOR AGREEMENT

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Independent Contractor Agreement – J. Whitcombe (data engineering)

Contract reference : CR-2025-009
Document type : Independent Contractor Agreement
Status : signed
Date received : 2025-04-15
Date signed : 2025-04-22

PARTIES

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- (1) Northgate Systems Ltd
 - (2) J. Whitcombe
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RECITALS

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- (A) 6-month engagement building the data-warehouse pipeline, day-rate basis.
 - (B) The commercial particulars are summarised below and, together with the standard terms and any negotiated amendments, form the whole agreement.

NOW IT IS AGREED as follows:

SUMMARY OF TERMS

Northgate consultancy template: deliverables, day rate, IP assignment, substitution right.

TERMS AND CONDITIONS

1. ENGAGEMENT

Northgate engages the Contractor to provide the services and deliverables described in the Summary of Terms on the day-rate basis stated. The Contractor is an independent contractor and not an employee, worker or agent of Northgate, and is responsible for its own tax and National Insurance.

2. STATUS AND OFF-PAYROLL WORKING

The parties intend that the engagement falls outside the off-payroll working rules in Part 2 Chapter 10 of the Income Tax (Earnings and Pensions) Act 2003. Consist

ent with
the status determination recorded in the Schedule of Negotiated Amendments, t
he Contractor has a genuine right of substitution, there is no mutuality of obli
gation,
and Northgate does not exercise employee-style control over how the services
are performed.

3. SUBSTITUTION

The Contractor may provide a suitably qualified substitute to perform the ser
vices,
provided the substitute is bound by equivalent obligations; the Contractor re
mains responsible for the services and for paying the substitute.

4. DELIVERABLES AND FEES

The Contractor shall provide the deliverables to a professional standard. Fee
s are payable at the agreed day rate against approved timesheets within thirty (30)
days of a valid invoice, exclusive of VAT.

5. INTELLECTUAL PROPERTY

All intellectual property rights in the deliverables and work product assign
to Northgate on creation or, if later, on payment, and the Contractor waives mor
al rights to the extent permitted by law.

6. CONFIDENTIALITY AND DATA PROTECTION

The Contractor shall keep Northgate's confidential information confidential a
nd comply with Northgate's information-security and data-protection policies, pr
ocessing personal data only as instructed.

7. TERMINATION

Either party may terminate on the notice stated in the Summary of Terms, or
immediately for material breach. On termination the Contractor shall deliver
up all work product and Northgate materials.

8. GOVERNING LAW

This Agreement is governed by the laws of England & Wales and subject to the
exclusive jurisdiction of the English courts.

----- ----- GENERAL PROVISIONS ----- -----

A. INTERPRETATION

Clause headings do not affect interpretation. References to a statute or stat
utory provision are to it as amended, extended or re-enacted from time to time and
include subordinate legislation made under it. Words in the singular include the plur
al and vice versa, and "including" and "in particular" are illustrative and do not l
imit the

words that precede them.

B. ENTIRE AGREEMENT

This agreement, together with the documents it incorporates and the Schedule of Negotiated Amendments, constitutes the entire agreement between the parties on its subject matter and supersedes all prior drafts, arrangements and understandings, whether written or oral. Each party acknowledges that it has not relied on any statement or representation not expressly set out in this agreement, save that nothing limits liability for fraud or fraudulent misrepresentation.

C. VARIATION AND WAIVER

No variation of this agreement is effective unless it is in writing and signed by an authorised representative of each party. No failure or delay by a party to exercise any right or remedy is a waiver of that or any other right or remedy, and no single or partial exercise prevents any further exercise.

D. ASSIGNMENT

Neither party may assign, transfer, charge, sub-contract or deal in any other manner with any of its rights or obligations under this agreement without the prior written consent of the other (such consent not to be unreasonably withheld or delayed), save that either party may assign to an affiliate or to a successor in connection with a bona fide reorganisation or sale of the relevant business.

E. SEVERANCE

If any provision of this agreement is or becomes invalid, illegal or unenforceable, it shall be deemed modified to the minimum extent necessary to make it valid, legal and enforceable; if such modification is not possible, the relevant provision is deemed deleted. Any modification to or deletion of a provision does not affect the validity and enforceability of the rest of this agreement.

F. NOTICES

Any notice given under this agreement shall be in writing, addressed to the relevant party at its registered office or principal place of business (or such other address as notified), and delivered by hand, pre-paid first-class post or email to the address notified for that purpose. A notice is deemed received: if delivered by hand, on signature; if by post, at 9.00am on the second business day after posting; and if by email, on transmission, subject to confirmation of delivery.

G. FORCE MAJEURE

Neither party is in breach of this agreement or otherwise liable for any failure or

delay in performance (other than a payment obligation) caused by an event beyond its reasonable control. The affected party shall notify the other and use reasonable endeavours to mitigate the effect. If the event continues for more than sixty (60) days, either party may terminate on written notice.

H. THIRD PARTY RIGHTS

Except as expressly stated in this agreement, a person who is not a party has no right under the Contracts (Rights of Third Parties) Act 1999 to enforce any term of this agreement, and the consent of any third party is not required to vary or rescind it.

I. DISPUTE RESOLUTION AND ESCALATION

The parties shall attempt in good faith to resolve any dispute by escalation to their respective senior representatives within fourteen (14) days of written notice of the dispute. If the dispute is not resolved within a further thirty (30) days, either party may pursue its rights and remedies, without prejudice to either party's right to seek urgent injunctive relief at any time.

J. COUNTERPARTS AND ELECTRONIC SIGNATURE

This agreement may be executed in any number of counterparts, each of which when executed constitutes an original and all of which together constitute one and the same instrument. Execution by electronic signature is valid and binding.

SCHEDULE OF NEGOTIATED AMENDMENTS (TRACKED CHANGES)

This Schedule records each redline agreed against the standard form above, the counterparty position it replaced, and the policy or legislation relied on. It forms part of this agreement and prevails over the standard wording it varies.

AMENDMENT 1 [2025-04-18] - AMENDED

Clause affected: Employment Status (Off-Payroll / IR35)

(+) Negotiated amendment:

+ Off-payroll status determination completed; outside-IR35 reflected.

Governing basis: Income Tax (Earnings and Pensions) Act 2003, Part 2 Ch. 10;

POL-
HR-003

EXECUTION

Executed by the parties on the dates set out below. This agreement may be signed in counterpart and by electronic signature.

Signed for and on behalf of Northgate Systems Ltd:

Signature: _____
Name: _____
Title: _____
Date: 2025-04-22

Signed for and on behalf of J. Whitcombe:

Signature: _____
Name: _____
Title: _____
Date: 2025-04-22

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 SIMULATED PLACEHOLDER CONTRACT – Northgate Systems Ltd corpus.

 Generated from the contract register; not a real legal document.

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